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CA cities lead state on gun control laws - will Legislature follow?

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California lawmakers have passed some of the nation's strongest gun reform laws, but dozens of communities across the state are home to even more stringent measures.

As California reels from three mass shootings that left at least 24 people dead in the span of 8 days, there are calls for the state legislature's Democratic supermajority to follow the lead of those localities and pursue even more aggressive gun regulations.

The recent killings have shaken residents across the Golden State, from a Los Angeles suburb known as America's first "suburban Chinatown" to a small Central Valley farming town to a Bay Area coastal community.

On Jan. 16, six people, including a young mom and baby, were shot by a gunman point-blank in the head at a home in Goshen. Another gunman opened fire on Jan. 21 in a popular ballroom dance studio in Monterey Park on the eve of the Lunar New Year, leaving 11 people dead. Less than 48 hours later, another man targeted two mushroom farms in Half Moon Bay, killing 7 people.

At a Tuesday press conference in Half Moon Bay, Sen. Josh Becker, D-San Mateo, commended state leaders for enacting progressive policies to curb gun violence. However, he added: "When there are seven people dead - innocent people in our community - it doesn't seem to amount to much."

"Until we get Republicans in Congress to act at the federal level, we've got to go back to the drawing board in California and look at every aspect of the process - how you get a gun, how you store a gun, how we enforce red flag laws, how we trace and do accountability for gun manufacturers," he said. "We owe that to the families who have lost loved ones and the residents of this state and country."

Calls like Becker's come as California starts 2023 with its deadliest month for mass shootings in recent memory. But overall, the state ranks 37% below the national average in the rate of gun deaths, according to the Giffords Law Center. A 2019 report touted by Gov. Gavin Newsom found California's death toll from firearms declined by 55% from 1993 to 2017, as lawmakers in Sacramento began addressing gun violence with new laws.

"Gun safety works," Newsom said Tuesday. "But we can't do it alone."

Advocates have worked with California cities and counties in recent years to pass strict gun ordinances in hopes of gaining momentum at the state level. Historically, progressive policies adopted locally have helped forge the way for statewide reform.

Some local regulations that are more rigorous than current state law include those that require firearm retailers to videotape sales transactions, ban gun dealers from operating in "sensitive areas" and establish tighter rules around storing guns safely.

Allison Anderman, senior counsel and director of local policy for Giffords Law Center, said those are all areas California lawmakers could look to strengthen state law.

"California is one of the few states in which the gun lobby hasn't been successful in convincing state legislators to take the power to regulate guns away from local jurisdictions," Anderman said. "Because of that, localities in California have broad authority to pass whatever gun laws they feel they need to keep their communities safe."

But taking up these matters at the state level couldalsoattractserious legal challenges as laws already on the books are under threat. The Supreme Court last June struck down New York's concealed carry law and encouraged reconsideration of gun laws in other states, including California's ban on assault weapons and high-capacity magazines.

"Whatever legislative solutions we employ to curtail the violence ultimately is going to be determined by perhaps the most conservative Supreme Court that we have known in a century," said Greg Woods, a professor in the Department of Justice Studies at San Jose State.

Here are some of the major gun control bills currently being proposed by California legislators and a list of local regulations that could be the next frontier for statewide gun reform.

More stringent laws in California cities and counties

Videotaped sales: This is intended to keep someone from buying a gun for another individual who is barred from owning firearms, an illegal practice known as straw purchasing. A handful of Bay Area cities have adopted this regulation, including the cities of San Francisco and San Jose. Walmart - the nation's largest gun seller - began voluntarily videotaping gun sales in 2008.

No dealers in"Sensitive Areas": These regulations prohibit gun dealers from operating in certain zones of a city, for instance, near schools or parks where children and families frequently visit. More than two dozen California jurisdictions have established these zones including Alameda County, Palo Alto and Santa Cruz. Alameda County's measure survived a federal court challenge in 2017.

Strict storage practices: State law imposes broad requirements for residents and gun dealers to keep their firearms safe. But dozens of localities have adopted ordinances that do more to protect against burglaries. For instance, state law requires that all firearms sold or transferred in California either be equipped with safety locks or accompanied by proof that the buyer owns a safe. But there is no universal requirement for owners to use them. The city of Davis last year passed an ordinance requiring all gun owners to store their firearms in a locked container or use a firearm safety device when they're not using them.

Liability insurance: San Jose became the first city in the nation to require gun owners to carry liability insurance and pay a $25 fee to a nonprofit to help cover the cost of gun violence in the city. The regulations, which have been challenged in court, were designed to encourage safer gun ownership after a 2019 mass shooting at the Gilroy Garlic Festival left three people dead and another at a San Jose rail yard in 2021 took 10 lives. Sen. Nancy Skinner, D-Berkeley, last year proposed a bill to expand this mandate statewide, but it stalled in the Assembly Appropriations Committee. On Thursday, Skinner reintroduced the legislation, calling it a "commonsense approach to improve community safety."

Gun control bills proposed by state lawmakers

Revamped concealed carry permitting: Sen. Anthony Portantino, D-La Cañada Flintridge, will make a second attempt to strengthen California's concealed carry law after the U.S. Supreme Court struck down portions in June 2022. The court's decision means the state is no longer allowed to ask permit applicants to show "good cause" to carry guns in public. Portantino, Newsom and Attorney General Rob Bonta last year attempted to pass an urgency measure shoring up the state's law. It narrowly failed in the last hours of the session.

Warning labels, stiffer penalties for unserialized guns: A bill from Skinner would require guns sold, transferred or manufactured in California to carry a warning label. Another measure from Assemblyman Freddie Rodriguez, D-Pomona, would attempt reduce the number of "ghost guns" by making it a felony to carry a firearm with a serial number that has been altered or removed.

Taxing guns and ammunition, "Do Not Sell List" changes: Assemblyman Jesse Gabriel, D-Woodland Hills, has

introduced a three-bill gun control package, with one measure that would tax firearms and ammunition in California. Another would allow residents to add their own names to the state's "Do Not Sell List," which restricts gun sales to certain people. Gabriel's office said the bill is meant to curb suicides and mass shootings by preventing people with mental illnesses from obtaining guns.

Tougher ownership rules for domestic violence offenders: Another bill from Gabriel would make it more challenging for people facing domestic violence restraining orders to acquire guns. Residents are currently not allowed to possess or buy guns while a restraining order is in effect. The proposal would extend that time period to three years unless a court decides the person does not pose a threat to public safety.

Maggie Angst: 916-321-1352, @MaggieAngst

Lindsey Holden: 916-321-1207, @lindseymholden

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